



File No.: EXP202207643

## RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: Ms. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on 31/05/2022. The complaint is directed against the GENERAL TREASURY OF SOCIAL SECURITY, with NIF Q2827003A (hereinafter, the respondent). The reasons for the complaint are as follows: the claimant states that a worker providing services for the respondent has made unauthorized accesses to her personal data with the intent to harm her; she indicates that on 03/05/2022 she requested the opening of an investigation regarding this matter; on 27/05/2022, the Inspection of Services of the respondent informed the claimant that they had detected several unjustified queries made on 23/03/2022, which is why an internal inquiry has been initiated to clarify the facts.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 12/07/2022, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding, which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 13/07/2022 as evidenced by the acknowledgment of receipt in the file.

THIRD: On 10/08/2022, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to the inadmissibility of the complaint. The resolution was notified to the claimant on 10/08/2022, as evidenced in the file.

FOURTH: On 09/09/2022, the claimant filed a voluntary appeal for reconsideration against the resolution issued in the file, expressing her disagreement with it and requesting the admission of the initially filed complaint. On 10/04/2023, the appeal was sent to the respondent in accordance with the provisions of Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) for the purpose of formulating allegations and presenting the documents and justifications deemed appropriate, which was verified by a response letter dated 20/04/2023. The respondent reiterated the information previously provided, confirming the unjustified accesses to the data of the appellant.

FIFTH: On 10/05/2023, the Director of the Agency resolved to GRANT the appeal for reconsideration filed against the resolution of this Agency issued on 10/08/2022 and to admit the complaint for processing in accordance with the provisions of Article 65 of the LOPDGDD.

SIXTH: On 05/07/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringements of Articles 5.1.f) and 32.1 of the GDPR, classified under Articles 83.5.a) and 83.4.a) of the GDPR.

SEVENTH: Notified of the initiation agreement on 05/07/2023, the respondent did not submit a written statement of allegations regarding the aforementioned agreement.

EIGHTH: On the date, a Proposal for Resolution was issued stating that the Director of the AEPD should declare the infringement by the respondent of Articles 5.1.f) and 32.1 of the GDPR, classified under Articles 83.5.a) and 83.4.a) of the GDPR.

On 04/09/2023, the respondent submitted a written statement of allegations to the Proposal for Resolution, summarizing the following: technical difficulties in sending and communicating with the AEPD through its electronic Registry; apologies for the error made in the submission of 17/07/2023 regarding the documentation that was part of the allegations to the initiation agreement, mistakenly forgetting to attach the signed letter of allegations by the General Secretary of the TSGG; reiteration of the allegations of 14/07/2023 and the documentation of 17/07/2023; and, in addition, contrary to what is stated in the Proposal, "the situation that occurred is not attributable to a third party, but constitutes irregular conduct attributable to an employee of this Entity" and that "there can be no appreciation of the existence of a security breach since we are not facing a generalized error or failure of our security

system, but rather an improper and unpredictable use by an official of transactions to which she was authorized access for the performance of her professional duties” and that regarding what was stated in the letter of 14/07/2023, there was an “agreement of 22/06/2022 to initiate disciplinary proceedings against the implicated official, although it was suspended pending the judicial ruling (Preliminary Proceedings No. XXXXXX/2022 initiated by the Court of Instruction (...) of Valencia), as both procedures concern the same facts.”

NINTH: From the actions taken in this procedure, the following have been established,

#### PROVEN FACTS

FIRST. On 31/05/2022, a letter from the claimant was received at the AEPD in which she states that her personal file has been accessed by an official of the respondent using her personal data for a purpose.

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

3/13

distinct from their labor activity; (...); all these facts have been brought to the attention of the respondent, who has requested that their data be protected due to their vulnerable situation, which is further corroborated by the fact that there have been unjustified inquiries into their file.

SECOND. On 10/08/2022, a resolution was issued agreeing to the non-admission of the claim for processing.

THIRD. On 09/09/2022, the claimant filed a voluntary appeal for reconsideration expressing their disagreement with the resolution issued, requesting the admission for processing of the claim initially presented. During the course of this, the respondent, in allegations during the hearing process, reiterated the information previously provided, confirming the unjustified accesses to the personal data of the claimant.

FOURTH. On 10/05/2023, the Director of the Agency resolved to uphold the appeal for reconsideration filed, admitting the claim for processing.

FIFTH. It is recorded that the claimant submitted a Request Form for the Exercise of Rights requesting the right of access to their personal data before the respondent, dated 03/05/2022, as a consequence of the previously exposed facts.

SIXTH. There is a response letter from the respondent dated 25/05/2022 in which it is stated: “In response to your letter of 3 May 2022, in which you requested the opening of an investigation into possible accesses to your personal data without your consent, this Inspection of Services of the General Treasury of Social Security (TGSS) informs you that within the chain of traces, several unjustified inquiries into your data were detected at the Provincial Directorate of Valencia dated 23 March 2022. For this reason, we inform you that this unit will begin to carry out the necessary internal actions regarding the investigated personnel. (...)”.

SEVENTH. It is recorded that an Internal Note from the respondent addressed to the General Secretariat, Deputy General Subdirector, Disciplinary Regime Unit, File \*\*\*EXPEDIENTE.1, dated 02/06/2022, states the following: “(...) On 26 May, the Provincial Director of Valencia sent us different documentation, among which is a letter from the Provincial Directorate confirming the existence of the detected traces and indicating the functions of the worker, and a statement from the official, in which they claim not to have accessed any personal data beyond what is necessary for the tasks they are responsible for. After analyzing all the documents, this unit cannot consider sufficient justification for the inquiries made for the following reasons:

- Firstly, it must be taken into account the particularity of this case, since the complainant is involved in an ongoing judicial procedure and, likewise, this person had a relationship of affinity with the accused.

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

4/13

- On the other hand, the documentation sent by the D.P. of Valencia does not mention any specific file on which the accesses made by this official are based, and furthermore, the dates of these accesses do not coincide with a period of activity of the complainant, who at that time was unemployed.

(...)

EIGHTH. Dated entry registration 22/06/2022, there is a request from the Court of Instruction No. XX of Valencia in the Preliminary Proceedings No. XXXXXX/2022, in which it is indicated that "I am addressing you in order to request that regarding the file \*\*\*FILE.1 opened in this Inspection, I request you send a report and identification of the unjustified consultations to the personal data of the claimant."

NINTH. In its response to the Court, dated 23/06/2022, the respondent states that:

"(...)

After analyzing the documentation sent, this unit has been unable to consider these accesses justified based on the following reasons:

No administrative file related to the complainant has been provided in which these accesses can be substantiated.

Furthermore, after analyzing our files, it has been verified that on the date these accesses were made, Ms. A.A.A. was unemployed, so a consultation of her profile in the affiliation file made at that time by the General Treasury cannot be linked to a professional purpose (although it should also be noted that it is not uncommon for authorized users to access our systems in good faith and provide data to third parties who have requested them verbally)."

And identifies the user who made the consultations to the personal data of the claimant, as well as the day and time of the same.

TENTH. The respondent has submitted the response offered to the request of the AEPD in which it reiterates what has already been stated in the previous writings.

ELEVENTH. The respondent in a document dated 17/07/2023 has submitted a copy of the Circular on the regulation and development of controls and audits on access to the files and databases managed by the General Treasury of the Social Security; Policy for the safe use of the information systems of the Social Security; Security incident management; Access and authorization management; and Report from the Provincial Director of Valencia. In this report, the official is warned of her irregular conduct and the initiation of disciplinary proceedings.

## LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Likewise, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The reported facts materialize in the unjustified accesses to the personal data of the claimant by an official in the service of the respondent, which could constitute a violation of the personal data protection regulations.

Article 58 of the GDPR, Powers, establishes:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

b) to impose an administrative fine on the controller or processor with a warning when the processing operations have infringed the provisions of this Regulation;

(...)

d) to order the controller or processor to bring processing operations into compliance with the

provisions of this Regulation, when appropriate, in a specific manner and within a specified period; (...).”

### III

In the first place, such processing could constitute a violation of Article 5, Principles relating to processing, of the GDPR, which establishes that:

“1. Personal data shall be:

(...)”

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by applying appropriate technical or organizational measures (‘integrity and confidentiality’).

(...)”

### IV

Article 83.5 a) of the GDPR considers that the infringement of “the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9” is subject to sanction.

6/13

On its part, the LOPDGDD in its article 71, Infractions, states that:

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infractions.”

Also, the LOPDGDD, for the purposes of prescription, in its article 72 indicates:

“Infractions considered very serious:

1. Based on what is established in article 83.5 of Regulation (EU) 2016/679, the infractions that imply a substantial violation of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

a) The processing of personal data violating the principles and guarantees established in article 5 of Regulation (EU) 2016/679.

(...)”

### V

1. The documentation in the file provides clear evidence that the respondent violated article 5 of the GDPR, principles related to processing, by allowing access to the personal data of the complainant by an official in the service of the entity, accesses that were not justified as they were not linked to professional purposes.

This duty must be understood as aimed at preventing unauthorized leaks of data not consented to by the data subjects.

The respondent himself, in a letter dated 25/05/2022 in response to the exercise of rights carried out by the complainant, informed her that “...within the chain of traces, several unjustified queries to her data have been detected...”

Also, in an Internal Note from the respondent sent to the General Secretary, Deputy General Subdirector, Disciplinary Regime Unit, it was indicated that “(...) On May 26, the Provincial Director of Valencia sent us different documentation, including an official letter from the Provincial Directorate confirming the existence of the detected traces and indicating the functions of the worker, and a statement from the official, in which she claims not to have accessed personal data beyond what was necessary for the tasks that pertain to her.

After analyzing all the documents, this unit cannot consider sufficient justification for the queries made for the following reasons:

- First, it is necessary to take into account the particularity of this case, since the complainant is involved in an ongoing judicial procedure and, furthermore, this person had a relationship of affinity with the respondent.

- On the other hand, the documentation sent by the Provincial Directorate of Valencia does not mention any specific file on which the accesses made by this official are based, and moreover, the dates of these do not coincide with a period of activity of the complainant, who at that time was unemployed.

(...)”

This duty of confidentiality is an obligation that falls not only on the data controller and processor but

on anyone involved in any phase of the processing and is complementary to the duty of professional secrecy.

Therefore, the actions carried out constitute a violation of article 5.1.f) of the GDPR, classified in article 83.5.a) of the aforementioned Regulation.

VI

Secondly, the respondent is attributed with the possible violation of article 32 of the GDPR "Security of processing," which establishes that:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying probability and severity risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to article 40 or to an approved certification mechanism pursuant to article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

VII

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

8/13

The violation of Article 32 of the GDPR is classified in Article 83.4.a) of the aforementioned GDPR in the following terms:

"4. The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43.

(...)"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

And in its Article 73, for the purposes of prescription, qualifies as "Serious Infringements":

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall prescribe after two years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

- g) The breach, as a result of a lack of due diligence, of the technical and organizational measures that should have been implemented in accordance with the requirements of Article 32.1 of Regulation (EU)

2016/679.”

(...)”

VIII

1. The GDPR defines personal data security breaches as “all breaches of security that lead to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or to unauthorized communication or access to such data.”

From the documentation in the file, there is clear evidence that the respondent has violated Article 32.1 of the GDPR, as a security incident occurred, with a breach of the implemented technical and organizational measures.

It should be noted that the GDPR in the cited provision does not establish a list of security measures applicable according to the data being processed, but rather establishes that the controller and the processor shall apply technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the risks of probability and severity for the rights and freedoms of the data subjects.

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

9/13

Likewise, the security measures must be adequate and proportionate to the detected risk, indicating that the determination of the technical and organizational measures must be carried out taking into account: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification processes (not audits), evaluation, and assessment of the effectiveness of the measures.

In any case, when assessing the adequacy of the level of security, particular attention shall be paid to the risks presented by the data processing, as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, which could cause physical, material, or immaterial harm.

In this same sense, Recital 83 of the GDPR states that:

“(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or processor must assess the inherent risks of the processing and apply measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation concerning the risks and the nature of the personal data that must be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, particularly those that could cause physical, material, or immaterial harm.”

2. In this case, as stated in the facts, the AEPD forwarded the complaint filed to the respondent for analysis and to inform this Agency of the actions taken to comply with the requirements set forth in the data protection regulations.

The respondent has confirmed the accesses that occurred and that they are not justified, despite what was stated by the official in their service that they were carried out within the scope of their employment relationship, since there was no open file on the complainant and when the accesses were made, the complainant was unemployed.

Furthermore, it is necessary to refer to the peculiarity of the case as the complainant had a relationship of affinity with the official responsible for the accesses.

On the other hand, the respondent has stated that, although the current level of security, the diligence, and the good faith with which the staff in their service work, mean that incidents like the one that occurred arise very rarely, they are continuously working to avoid any infringement of the regulations.

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es  
10/13

data protection, in such a way that the rights of citizens can be safeguarded, adopting a series of measures focused on these purposes.

It should be noted that sometimes the design and implementation of appropriate technical and organizational measures are not sufficient; their correct implementation and appropriate use are also necessary.

The responsibility of the respondent is determined because the measures implemented must, to the extent possible, prevent errors and incidents such as the one that occurred, as they are responsible for making decisions aimed at effectively implementing and adapting measures that guarantee an adequate level of security relative to the risk, reinforcing the confidentiality of the data, restoring its availability, and preventing access to it in the event of a physical or technical incident.

In accordance with the above, it is estimated that the respondent would be presumably responsible for the infringement of the GDPR: the violation of Article 32, an infringement classified in Article 83.4.a).

## IX

The LOPDGDD in its Article 77, Applicable regime for certain categories of controllers or processors, establishes the following:

“1. The regime established in this article shall apply to the processing for which they are responsible or processors:

(...)

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which they are hierarchically dependent, where appropriate, and to the affected parties who had the status of interested parties, where appropriate.

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary actions when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regimes that apply.

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es

11/13

Likewise, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is accredited, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order the publication in the Official State Bulletin or the corresponding autonomous bulletin.

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it shall publish on its website, with due separation, the resolutions referred to the entities in paragraph 1 of this article, with an express indication of the identity of the controller or processor who has committed the infringement. When the competence corresponds to an autonomous data protection authority, the publicity of these resolutions shall be governed by its specific regulations.”

In the case examined, the sanctioning procedure arises because the respondent, as stated in the facts, has violated the regulations on personal data protection regarding both the principle of confidentiality of the data and the established technical and organizational measures.

In accordance with the evidence available, this conduct constitutes, on the part of the respondent, the infringement of the provisions of Articles 5.1.f) and 32.1 of the GDPR.

It should be noted that the GDPR, without prejudice to what is established in its Article 83, contemplates in its Article 77 the possibility of declaring the infringement and establishing the measures that should be taken to correct personal data processing that does not comply with its provisions, when the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law.

Additionally, Article 58 of the GDPR in its paragraph 2 d) provides that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe...”

However, the respondent has stated that incidents such as those that occurred are rare and that “Even so, such incidents occur on some occasions, prompting the intervention of this Inspection of Services with the consequent adoption of the...”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/13

appropriate measures to correct the problem and avoid or reduce the consequences that may arise, such as:

A. Greater control over the profiling of access to our databases by our staff, to assign them only the strictly necessary accesses for the performance of their professional tasks.

B. The withdrawal of access to transactions used irregularly.

C. The proposal to open a disciplinary file (if it concerns our staff).

D. The warning regarding the strict prohibition of any access made outside the exercise of their professional tasks. In this regard, any access by our staff to the data contained in the files of the Social Security Information System requires the entry of a personal and non-transferable password, warning the user that such password is equivalent to their electronic signature and about the possible actions and responsibilities (administrative, civil, and criminal) in the event of improper access and use of the data contained therein.

E. Increasing the information and training on data protection provided to all staff, so that they are more aware of the importance of this matter, the commitment of this entity regarding it, or the harm that an incident in the security of personal data may cause to the citizen.

F. Strengthening the systems of periodic audits and access control to the files and databases managed by the TGSS.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the GENERAL TREASURY OF SOCIAL SECURITY, with NIF Q2827003A, has infringed the provisions of articles 5.1.f) and 32.1 of the GDPR, classified under article 83.5.a) and 83.4.a) of the GDPR, respectively.

SECOND: TO NOTIFY this resolution to the GENERAL TREASURY OF SOCIAL SECURITY.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of article 77.5 of the LOPDGDD.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](http://sedeagpd.gob.es)